

CHEERCAST PILOT PROGRAM AGREEMENT

Confidentiality, Intellectual Property & Beta Testing Agreement

This Pilot Program Agreement ("Agreement") is entered into as of June 3, 2025 ("Effective Date") by and between:

Gleeson Consulting, LLC, a limited liability company, located at 1215 Cedar Grove Road, Media, PA 19063 ("Company"), and

Kedron Cheerleading Association, located at 3932 Miller Road, Newtown Square, PA 19073 ("Gym").

Company and Gym are each referred to herein individually as a "Party" and collectively as the "Parties."

BACKGROUND

Company has developed a proprietary software platform known as CheerCast (the "Platform"), designed to assist cheerleading gyms with athlete management, team placement, evaluations, and related operational functions. Company wishes to conduct a limited, free-of-charge pilot program with Gym to test and refine the Platform. Gym wishes to participate in the pilot on the terms set forth in this Agreement.

1. PILOT PROGRAM

1.1 Scope. Company grants Gym a limited, non-exclusive, non-transferable, revocable license to access and use the Platform solely for internal evaluation purposes during the Pilot Period defined below. No rights are granted beyond those expressly stated in this Agreement.

1.2 Pilot Period. The pilot program will begin on the Effective Date and continue for twelve (12) months, unless earlier terminated by either Party upon seven (7) days' written notice, or by Company immediately for cause.

1.3 No Charge. Gym's participation in the pilot is provided free of charge. Company reserves the right to introduce fees for continued use of the Platform after the Pilot Period, at its sole discretion.

1.4 Beta Nature of Platform. Gym acknowledges that the Platform is pre-release software provided on an "as-is" basis. It may contain errors, bugs, or incomplete features. Company does not warrant uninterrupted or error-free operation during the pilot.

2. CONFIDENTIALITY

2.1 Confidential Information. "Confidential Information" means any non-public information disclosed by Company to Gym in connection with this Agreement, including but not limited to:

the Platform's design, features, functionality, source code, algorithms, workflows, data structures, pricing strategy, business plans, user interface, and any other technical or commercial information. Confidential Information includes information disclosed orally, in writing, or by any other means.

2.2 Obligations. Gym agrees to: (a) hold all Confidential Information in strict confidence; (b) not disclose Confidential Information to any third party without the prior written consent of Company; (c) use Confidential Information solely to participate in the pilot program; and (d) limit access to Confidential Information to Gym's own personnel who have a need to know and who are bound by confidentiality obligations at least as protective as those in this Agreement.

2.3 Duration. Gym's confidentiality obligations survive the expiration or termination of this Agreement for a period of five (5) years.

2.4 Exceptions. The obligations in Section 2.2 do not apply to information that: (a) is or becomes publicly known through no breach by Gym; (b) was rightfully known to Gym before disclosure by Company; or (c) is required to be disclosed by law or court order, provided Gym gives Company prompt written notice and reasonably cooperates in seeking a protective order.

3. INTELLECTUAL PROPERTY

3.1 Ownership. The Platform and all related intellectual property — including software, code, design, trademarks, trade secrets, and all improvements, modifications, or derivative works — are and shall remain the exclusive property of Company. This Agreement does not transfer any ownership interest in the Platform to Gym.

3.2 No Reverse Engineering. Gym agrees not to: (a) copy, reproduce, modify, or create derivative works based on the Platform; (b) reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code or underlying structure of the Platform; or (c) remove, obscure, or alter any proprietary notices or labels on the Platform.

3.3 Feedback. If Gym provides suggestions, feedback, or ideas regarding the Platform ("Feedback"), Gym hereby assigns to Company all right, title, and interest in and to such Feedback. Company may use Feedback for any purpose without restriction or compensation to Gym.

3.4 Gym Data. Gym retains ownership of the data it inputs into the Platform ("Gym Data"). Company will not sell or disclose Gym Data to third parties without Gym's consent, except as required by law. Company may use anonymized, aggregated data derived from Gym Data to improve the Platform.

4. PERMITTED USE & RESTRICTIONS

4.1 Permitted Use. Gym may use the Platform solely for its own internal gym operations during the Pilot Period.

4.2 Restrictions. Gym shall not: (a) sublicense, sell, resell, transfer, or otherwise make the Platform available to any third party; (b) use the Platform to develop a competing product or

service; (c) use the Platform in any unlawful manner; or (d) share login credentials or access with anyone outside Gym's own organization.

5. LIMITATION OF LIABILITY

TO THE MAXIMUM EXTENT PERMITTED BY LAW, COMPANY SHALL NOT BE LIABLE TO GYM FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT OR THE USE OF THE PLATFORM, EVEN IF COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. COMPANY'S TOTAL LIABILITY TO GYM UNDER THIS AGREEMENT SHALL NOT EXCEED ZERO DOLLARS (\$0), REFLECTING THE FREE-OF-CHARGE NATURE OF THIS PILOT.

6. TERM & TERMINATION

6.1 Term. This Agreement commences on the Effective Date and continues until the end of the Pilot Period, unless earlier terminated.

6.2 Termination. Either Party may terminate this Agreement at any time upon seven (7) days' written notice. Company may terminate immediately if Gym breaches any provision of this Agreement.

6.3 Effect of Termination. Upon termination, Gym's right to access and use the Platform immediately ceases. Gym shall promptly delete or return any Confidential Information in its possession. Sections 2, 3, 5, and 7 survive termination.

7. GENERAL PROVISIONS

7.1 Governing Law. This Agreement is governed by the laws of the Commonwealth of Pennsylvania, without regard to conflict of law principles.

7.2 Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior discussions, representations, or agreements.

7.3 Amendments. This Agreement may not be modified except by a written amendment signed by both Parties.

7.4 No Waiver. Failure by either Party to enforce any provision of this Agreement shall not constitute a waiver of future enforcement of that provision.

7.5 Severability. If any provision of this Agreement is found unenforceable, the remaining provisions shall continue in full force and effect.

7.6 Counterparts. This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original.

SIGNATURES

By signing below, each Party agrees to be bound by the terms of this Agreement.

Holly Gleeson, Principal	Jenifer Friel, Director
Gleeson Consulting, LLC	Kedron Cheerleading Association
Date	Date